

LOTTE
NEW YORK PALACE

Mr. Brian Bendett
108 Leonard St., Apt 9M
New York, NY 10013

Dear Mr. Bendett:

Thank you for selecting Lotte New York Palace for the **Wedding IHO Ms. Magda Socha + Mr. Brian Bendett**, scheduled for **Saturday, May 31, 2025**.

Please find the following agreement outlining the details of your event. Throughout the agreement there are specific deadlines that have been underlined.

A link to a credit card authorization will be sent separately.

Please return a signed copy of this agreement to my attention by **Friday, March 21, 2025** to consider your event confirmed at Lotte New York Palace. If we do not receive a mutually agreed executed original of this agreement from you by **Friday, March 21, 2025**, this letter will be void and the event space will be automatically released.

If you have questions regarding the enclosed, please contact me at (212) 303-7746.

Sincerely,

Adam Riegler
Senior Catering Sales Manager

455 Madison Avenue, New York, NY 10022
Telephone 212 303 6071 • Reservations 1 800 NY PALACE

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EVENT CONTRACT

DATE: Tuesday, March 18, 2025
EVENT NAME: Wedding IHO Ms. Magda Socha + Mr. Brian Bendett
CONTACT: Mr. Brian Bendett
ADDRESS: 108 Leonard St., Apt 9M
New York, NY10013
PHONE: (860) 817-4654
EMAIL: brian@hang.com

CONTRACT DUE DATE: Friday, March 21, 2025

Pursuant to this contract, once accepted, **Mr. Brian Bendett** (hereinafter "Client") Wedding IHO Ms. Magda Socha + Mr. Brian Bendett will hold an event at Lotte New York Palace (hereinafter "Hotel") on **Saturday, May 31, 2025**.

SCHEDULE OF EVENTS

Date	Time	Event Class	Room	AGR	Rental
Sat, 05/31/25	6:00 PM - 6:30 PM	Ceremony	Drawing Room	110	\$15,000
Sat, 05/31/25	6:30 PM - 7:30 PM	Reception	Reid Salon	110	
Sat, 05/31/25	7:30 PM - 11:30 PM	Dinner Dance	Villard Ballroom	110	

FOOD AND BEVERAGE ARRANGEMENTS

Cocktail Reception

White Glove Passed Champagne on Arrival
Selection of Eight White Glove Passed Hors D'Oeuvres
Selection of Two Reception Stations
Premium Bar Service

Dinner

First Course
Tablesides Selection of Entrée
Silent Vegetarian Entrée
Dessert
Coffee and Tea Service with Palace Signature Petit Fours
Wedding Cake by Ron Ben-Israel
Wine and Premium Bar Service with Dinner

\$475 per Person

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ADDITIONAL ARRANGEMENTS

Bartender Fee: \$500 per Bartender, One per 75 Guests Required
Station Uniformed Chef Fee: \$350 per Chef, One per Station, per 50 Guests, if Required
Coat Check Fee: \$1,000 per Attendant, One per 100 Guests Required

Cake Delivery Fee: \$500 Flat Rate

Additional Hour of Bar Service: \$30 per Person, per Hour

Meals for Guests Under the Age of 21: \$375 Each
Meals for Guests Under the Age of 12: \$175 Each
Vendor Meals: \$175 Each

CONCESSIONS

Wedding Menu Tasting for Up to Six Guests
Complimentary Accommodations in a Towers Corner Suite for Two Nights
Complimentary Accommodations in a Towers King for One Night
Upgraded Accommodations to the Towers for Two Rooms at a Preferred Rate

Exclusive Photography Rights Within Hotel

Dedicated Wedding Concierge
Custom Wedding Cake by Ron Ben-Israel
House Dance Floor
Floor Length Designer Linens
Signature Charger Plates
Personalized Menu Cards

ANTICIPATED BANQUET FOOD & BEVERAGE AND ROOM RENTAL REVENUE FIGURES

Minimum planned banquet food and beverage revenue is **\$52,250.00** and anticipated room rental of **\$15,000.00**. Total anticipated revenue is **\$67,250.00**. These figures shall be referred to herein as the "Minimum Anticipated Food and Beverage and Room Rental Revenue Figures." All revenue figures are not inclusive of applicable 23% service charge, 8.875% NY State taxes and/or other applicable taxes.

DEPOSIT SCHEDULE

The deposits and payments outlined in the table below are due as indicated. The deposits and payments will be applied to event master account in the form of credits.

Deposit Name	Amount	Due Date
Initial Deposit	\$50,000.00	Signature of Contract
Second Deposit	\$25,000.00	04/25/2025
Final Deposit	100% of Estimated Charges	05/16/2025

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ALL ESTIMATED CHARGES ARE DUE 14 DAYS PRIOR TO ARRIVAL UNLESS DIRECT BILLING IS APPROVED

PAYMENT

Deposit and final bill payment by: **Credit Card**. A valid credit card or 20% overage on estimated master account charges is required to guarantee all event contracts.



For all deposits and final payment, Lotte New York Palace is pleased to accept payment by credit card including The American Express Card.

STANDARD TERMS & CONDITIONS

GUARANTEED MINIMUMS

There is a required **\$59,375.00** minimum spend in food and beverage charges for the function. This minimum does not include taxes or service, room rental, labor or audio/visual charges, or any other miscellaneous charges incurred for the event. If the final attendance count should fall below the estimated number of guests listed above, Hotel will be happy to advise you as to alternatives in food and beverage selections which may provide you with services equivalent in value to the agreed upon minimum revenue figures for your function.

FINALIZATION

The final menu selections must be made no later than **twenty-one (21)** days prior to your arrival. Though this number will not affect the Minimum Food & Beverage Revenue figure noted above, the final attendance for your event must be received in writing by the catering office no later than **4:00PM hotel time, three (3)** business days before the date of the event. This will be the number for whom the Hotel will prepare food for the event and may not decrease. The Hotel cannot be responsible for service or guaranteeing the same menu items for more than five (5) percent over guarantee for events with an attendance of less than 500 people and three (3) percent over guarantee for events with an attendance of more than 500 people. If a guarantee is not given to the Hotel by the specified time and date, the original estimated attendance would be considered the final guarantee.

FEE SCHEDULE, METHOD OF PAYMENT AND PAYMENT POLICIES

ALL ESTIMATED CHARGES ARE DUE 14 DAYS PRIOR TO ARRIVAL. A valid credit card or 20% overage on estimated master account charges is required to guarantee all event contracts.

Any remaining balance is to be made in cash or by certified or bank check, at least two days prior to the Event. If any such payment is not made, Hotel may, at its option, deem the Event to be canceled, in which case cancellation charges will apply as noted above and the Hotel will retain any deposits on hand and apply them to the cancellation charges.

Please make deposit payments by check payable to **Lotte New York Palace** and mail to the attention of your sales manager, **Adam Riegler**. If your contract is signed within thirty (30) days of your Event commencement date, pre-payment must be made by credit card, certified check, or wire transfer. Failure to remit the appropriate pre-payment on a timely basis will be considered a cancellation by the group and the cancellation provisions of this Contract shall apply.

CANCELLATION

Because of the Hotel's large capacity to prepare and serve food, the parties recognize that it is exceptionally unlikely that the Hotel would be able to mitigate any losses caused by underutilization (attrition) or cancellation of the program. The parties agree that prospectively calculating the damages Hotel would suffer as the result of

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cancellation or attrition would be exceptionally difficult. The amounts due for underutilization or cancellation set forth herein are intended as liquidated damages.

Date of Cancellation	Description	Amount Due
90 Days Prior to Event Date or Less	100% of Minimum Anticipated Revenue	\$67,250.00

Taxes will be added to all amounts. Liquidated damages resulting from cancellation shall be due and payable at the time of cancellation.

GRATUITY & SERVICE CHARGE

A mandatory service charge of 23% of the cost of food, beverage and room rental will be added to your bill, subject to applicable taxes. A portion of this will be distributed to the service staff (waiters, bussers, captains, and bartenders) as a gratuity and the remainder will be retained by the Hotel to defray its administrative costs. The administrative charge is NOT a gratuity. For all food charges, 16.8% of the service charge will be distributed to staff and 6.2% will be retained by the hotel. For all beverage charges, 18.8% of the service charge will be distributed to staff and 4.2% will be retained by the hotel. For all room rental charges, 15.65% of the service charge will be distributed to staff and 7.35% will be retained by the hotel. For In Room Dining, Bars or Restaurants, 19% of the service charge will be distributed to staff and 4% will be retained by the hotel. **NO OTHER CHARGES ON THIS CONTRACT ARE PURPORTED OR INTENDED TO BE GRATUITY FOR THE SERVICE STAFF AND NO OTHER CHARGES WILL BE DISTRIBUTED TO THE SERVICE STAFF AS GRATUITY.**

TAXES

Food and Beverage and Room Rental pricing is subject also to 8.875% New York State Sales tax. All federal and local taxes are charges related to the services rendered by the Hotel for your function in addition to the prices herein agreed upon, and you agree to pay them in accordance with the payment terms set forth herein.

OUTSIDE FOOD & BEVERAGE

No food or beverages of any kind can be brought into the Hotel by you or any of your guests, invitees or attendees.

ASSIGNMENT OF FUNCTION SPACE & MENU SUBSTITUTIONS

The Hotel reserves the right to assign another room for your function in the event the room originally designated for your function shall be unavailable or inappropriate, in the Hotel's sole opinion, with written approval from Client. In the event of increased costs of commodities or menu items, the Hotel may, at its option, make reasonable substitutions in menu items.

FORCE MAJEURE

No damages shall be due for a failure of performance due to Acts of God, war, terrorist act, government regulation, riots, disaster or strikes, any one of which make performance impossible, or due to restrictions on commodities or supplies. If, for any reason, the space reserved hereunder is not available for the Event, Hotel may substitute other space, and Group agrees to accept such substitutions. In no event will Hotel be liable for consequential damages of any nature for any reason. Further, if in the event the Hotel shall have any liability to you (whether under this contract or otherwise), the amount of such liability shall not exceed the amount of your deposit, plus fifty percent (50%) of the Minimum Anticipated Food and Beverage Revenue amount.

GOVERNING LAW

This contract is made and to be performed in New York, New York and shall be governed by and construed in accordance with New York law. By executing this agreement, Wedding IHO Ms. Magda Socha + Mr. Brian Bendett

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consents to the exercise of personal jurisdiction over it by the courts of the State of New York in which hotel is located, which shall be where any litigation relating to this contract in any way shall occur. This contract is the entire agreement between the parties, superseding all prior proposals both oral and written, negotiations, representations, commitments and other communications between the parties, and may only be supplemented or changed in writing, signed by a representative of the group and the hotel's Director of Catering. No representative of the Hotel has been or is authorized to make any representation, which varies from the express terms of this contract, though this contract may be supplemented or amended in writing. Group may not assign any benefits arising under or associated in any way with this contract without prior written consent of Hotel. No food and/or beverage of any kind will be permitted to be brought into the hotel, or any suite used as a hospitality suite, by the group or any of the group's guests. Additionally, should the Hotel, in its sole discretion, deem collection action necessary, whether prior to, during or subsequent to arbitration or litigation, the entire cost of collection, including attorneys' fees, costs, shall be paid by Group. In the event of litigation, the prevailing party therein shall recover its attorneys' fees and costs.

DISPLAYS & DECORATION

All displays and/or decorations proposed by Client will be subject to the prior written approval of Hotel in each instance. Any personal property of Client or Client's guests or invitees brought onto Hotel premises and left thereon, either prior to or following the Event, will be at sole risk of the Client and Hotel will not be liable for any loss of or damage to this property for any reason. Client acknowledges that the Hotel does not maintain insurance covering Client's property and that it is the sole responsibility of Client to obtain business interruption, and property damage, and other potentially applicable, insurance covering such losses by Group.

SECURITY

If required, at the sole judgment of Hotel, in order to maintain adequate security measures in light of the size and nature of the Event, Client must provide, at its expense, security personnel for the Event supplied by the Hotel.

Use of any security companies other than Hotel is prohibited without consent. In accordance with the Hotel's union requirements, if an outside company is used, Client must pay the following: For each one of the security guards brought into the hotel by the outside company, the group must pay for one hotel security officer for an amount of hours equal to the number of hours worked by the outside company's workers with a 4-hour minimum. As of July 1, 2023, the hourly rate is \$150.00 per security officer hired. This prevailing rate is subject to annual increases based upon the negotiated Union Contract signed every July 1. Security personnel who are performing protective services for an individual executive or set of executives are not subject to the matching labor agreement if they are dedicated to one or more individuals and not assigned to fixed posts. Security personnel provided by Group shall not carry weapons and are to coordinate with Hotel's regular security force and will concern themselves only with access to the space reserved hereunder (or substituted therefore), restricting their presence to those areas of the Hotel premises. **The Hotel requires two (2) security officers for all Courtyard events.**

EVENT BARS WITH ENTERTAINMENT

Due to OSHA requirements, the event bar shall be positioned within the foyer space and not within the ballroom where a DJ or live entertainment is present. Should this arrangement be unavoidable, the Client must employ additional bartenders, with a fee of \$500 per bartender, to facilitate rotation. Any deviation from this stipulation must be arranged with prior written approval from the Catering Department.

DELIVERIES & SHIPPING

Client agrees to conduct the Event in an orderly manner in full compliance with applicable laws, regulations, and Hotel rules, copies of which are available from the Catering Department. All displays, exhibits, decorations and

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equipment (including musical equipment) must be transported in and out of the Hotel through the receiving entrance or security office only.

All property must be removed from the room at the end of the event. Any material left at the Hotel must be adequately packed and labeled. The Hotel will not be responsible for incorrect packaging or labeling of such material. The material will be stored for no longer than 24 hours after the event. The Hotel assumes no responsibility for any material left at the Hotel for longer than this period, and group is responsible for arranging for its shipment, at Group's expense, from the Hotel.

OUTSIDE CONTRACTORS

The Hotel offers all services necessary for a successful event. However, if Client finds it necessary to use outside services, any companies, firms, agencies, individuals and groups hired by or on behalf of Client shall be subject to prior written approval of the Hotel. Upon prior reasonable notice to the Hotel from Client, Hotel shall cooperate with such contractors and provide them with facilities at the premises to the extent that the use and occupancy of the facilities by the contractor does not interfere with the use and enjoyment of the Hotel premises by other guests and members of the Hotel. Client's contracts with its contractors will all specify that contractor and the group will indemnify and hold the Hotel harmless from any and all damages or liabilities which may arise by such Contractors or through their use. Any contracted company working at Hotel is required to carry and maintain workers' compensation insurance in statutory amounts; comprehensive general public liability insurance covering automobile, personal injury and property damage with single limits of not less than one million dollars per person per occurrence. All such policies (except workers' compensation) shall specifically state "Hotel is named as an additional insured under the above policy. Such insurance shall be primary and not contributory with Hotel."

All musicians and other individuals hired by the Client in connection with the Event must enter and exit through the service entrance or security office only. All deliveries and pick-ups must be coordinated with the Hotel in advance. The Hotel reserves the right to refuse admission to any individuals, including musicians and other individuals hired by Group.

Client bears all responsibility for the payment of any charges incurred at the Hotel by its contractors.

SOCIAL EVENT LIGHTING

Client hereby agrees to arrange all social event lighting services through **Frost Productions**. This requirement is established for reasons of safety and compliance with rigging standards. No alternative event lighting vendors shall be engaged without prior written consent from the Catering Department.

INSURANCE

Client shall not be held accountable for carrying insurance directly. However, Client agrees to contract with external entities, including vendors and contractors, who shall be required to maintain and provide evidence of adequate liability and other insurance coverage. This insurance coverage is to safeguard against any claims arising from activities associated with the obligations outlined within this contract.

Damage to the Hotel premises by the Client or appointed contractors will be the Client's responsibility. Client will accept full responsibility for any damages resulting from any action or omission of their individual attendees in conjunction with organized activities. The Hotel is not responsible for any loss or damage no matter how caused, to any samples, displays, properties, or personal effects brought into the Hotel, and/or for the loss of equipment, exhibits or other materials left in meeting rooms.

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The Hotel reserves the right to approve all outside contractors hired for use by the Client in the Hotel, and may have a list of approved contractors and vendors. The Hotel must be notified in advance of any proposed vendor. The Hotel reserves the right to advance approval of all specifications, including electrical requirements, form all outside contractors, and to charge a fee for outside services brought into the Hotel. The Client and/or outside contractors must provide proof of worker's compensation insurance for employees who will work on Hotel premises and proof of adequate general liability coverage for the Client and/or outside contractors' activities while on Hotel's premises, and must comply with all other similar requirements the Hotel deems appropriate, in its sole discretion, regarding use of function space, facilities and use of Hotel services.

The Hotel shall indemnify, defend and hold harmless the Client and its officers, directors, partners, agents, members and employees from and against any and all demands, claims, damages to persons or property, losses and liabilities, including reasonable attorney's fees (collectively "Claims") arising out of or caused by the Hotel's negligence in connection with the provision of services or the use of the Hotel facilities. The Hotel shall not have waived or be deemed to have waived, by reason of this paragraph, any defense which it may have with respect to such claims.

The Client shall indemnify, defend and hold harmless the Hotel and its officers, directors, partners, agents, members and employees from and against any and all demands, claims, damages to persons or property, losses and liabilities, including reasonable attorney's fees (collectively "Claims") arising out of or caused by the Client's negligence and/or its members', agents', employees', independent contractors' or Exhibitors' negligence in connection with the use of the Hotel facilities. The Client shall not have waived or be deemed to have waived, by reason of this paragraph, any defense which it may have with respect to such claims.

SIGNAGE

Signs and banners are not allowed in the hotel's public areas. In regard to the Client's event space, all signs must be professionally printed and their placement and posting be pre-approved by the Catering Department. Nothing shall be posted, nailed, screwed or otherwise attached to walls, floors, or other parts of the building or furniture. Distribution of gummed stickers or labels is strictly prohibited. If Client desires to hang or adhere posters, banners, flip chart paper or other material in meeting rooms, sleeping rooms or public space, your Catering Manager must be notified of this request in advance, and will assist Client with the request in order to avoid damage to rooms, walls, etc. Any damage to Hotel as a result of not having prior approval will be billed to the Client.

AUTHORITY

The persons signing the agreement on behalf of Hotel and the **Wedding IHO Ms. Magda Socha + Mr. Brian Bendett** each warrant that they are authorized to make agreements and to bind their principals to this agreement.

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ACCEPTANCE

This contract shall be deemed accepted only after it has been signed by a representative of the Client and thereafter signed by a representative of the Hotel. Acceptance may be made by email and this contract may be executed in one or more counterparts, each of which when fully executed, shall be deemed to be an original, and all of which shall be deemed to be the same agreement.

Lotte New York Palace

NAME: _____ DATE: _____
Adam Riegler
TITLE: Senior Catering Sales Manager

Approved and Accepted on behalf of the **Wedding IHO Ms. Magda Socha + Mr. Brian Bendett**:

This agreement is between **Mr. Brian Bendett** and Lotte New York Palace; you agree that you have been authorized to sign this agreement on behalf of the **Wedding IHO Ms. Magda Socha + Mr. Brian Bendett**.

NAME: _____ DATE: _____
Mr. Brian Bendett

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INVOICE

Date: March 18, 2025

Invoice Number: SOC BEN310525

Brian Bendett
108 Leonard St., Apt 9M
New York, NY 10013

Event Name: Wedding IHO Ms. Magda Socha + Mr. Brian Bendett

Deposit Name	Amount	Due Date
Initial Deposit	\$50,000.00	Signature of Contract

To ensure proper credit, please return a copy of this invoice with your payment. Lotte New York Palace accepts payment by company check or electronic wire transfer.

For final payment, Bank checks and wire transfers must be received no less than 14 days prior to arrival. Domestic wire transfers typically take 3 business days and international wire transfers take 7 business days to reach Bank of America. Please consider this when paying via wire transfer.

Check Payment

Please make checks payable to Lotte New York Palace and send **ATTENTION: Adam Riegler**

Hotel Information

Beneficiary Name : Lotte Hotel New York Palace, LLC
Beneficiary Address: 455 Madison Avenue
New York, NY 10022
Beneficiary Contact: Robie Seebaran
Beneficiary Title: Credit Manager
Beneficiary Phone: 212-303-7783

Bank Information

ACH Payments - Bank of America
2000 Clayton Road, Building D
Concord, CA 94520
ABA # for ACH Payments 121000358
Wire Transfer Payments - Bank of America
100 West 33rd Street
New York, NY 10001
ABA # for Wire Transfer Payments 026009593
Bank Contact: Lisa Kim
Contact Title: Vice President; Treasury Sales Officer
Contact email: Lisa.y.kim@baml.com
Bank Account#: 1291263754
SWIFT CODE US\$: BOFAUS3N

Please include Event Name with payment and advise the Hotel once wire payment is completed.